BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

COURT NO. 1, ALLAHABAD

CP (CAA) NO. 16/ALD/2021

CA(CAA) No. 20/ALD of 2021

IN THE MATTER OF SECTION 230-232 OF THE COMPANIES ACT, 2013

(Under Section 230 & 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

In the matter of scheme of amalgamation

OF

V.K. BAJAJ INVESTMENT PRIVATE LIMITED

(TRANSFEROR COMPANY)

AND

A.K. BAJAJ INVESTMENT PRIVATE LIMITED

(TRANSFEREE COMPANY)

AND

Their Respective Shareholders and Creditors

ORDER PRONOUNCED ON :28.09.2021

CORAM:
Hon'ble Dr. Deepti Mukesh, Member, Judicial

Hon'ble Ms. Sumita Purkayastha, Member, Technical

MEMO OF PARTIES

V.K. BAJAJ INVESTMENT PRIVATE LIMITED
Registered Office at
56, Model Town, Ghaziabad
Uttar Pradesh-201009

—Sd—

.....Transferor Company

—Sd—

AND

A.K. BAJAJ INVESTMENT PRIVATE LIMITED
Registered Office at
56, Model Town, Ghaziabad
Uttar Pradesh-201009

.....Transferee Company

AND

THEIR RESPECTIVE CREDITORS AND SHAREHOLDERS

Appearance:
For the Applicant Companies: Mr Anil Kumar, PCS

ORDER

[Per se: Ms. Sumita Purkayastha, Member (T)]

1. This petition by way of Second motion is admitted and fixed for hearing and final disposal on 1st December,2021.

2. Learned counsel for the petitioner companies submits that in terms of the order dated 31.08.2021 passed by this Bench in CA (CAA) No. 20/ALD/2021, the holding of the meetings of all the equity shareholders, secured creditors and unsecured creditors of both the applicant companies for the proposed scheme of Amalgamation between the transferor and the transferee company has been dispensed with in view of the consent affidavits being on record.

3. It is therefore now directed that the notice of final hearing be fixed on 1st December, 2021 and shall be advertised in the daily newspapers namely "***Jansatta" in Hindi and "Financial express" in English*** having circulation in district Ghaziabad, where the registered office of the applicant companies are situated.

—Sd—

—Sd—

4. In addition to the above public notice, the applicant companies shall individually serve notice of the petition on the following Authorities namely,(a) Central government through Regional Director, Northern Region (b) the Registrar of Companies, Kanpur; (c)the Official Liquidator, Allahabad; (d) the Income-Tax Authorities and other sectoral regulatory Authorities who may govern the working of the respective companies involved in the scheme, at least 30 days before the date fixed for hearing of the above petition.

5. Both the applicant companies, shall at least 7 days before the date of hearing of the petition, file an affidavit of service in relation to the paper publication effected as well as the service of notices on the Authorities specified above including the Sectoral regulators.

6. Objections if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the apart of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and the relevant rules framed there under.

—Sd—

(SUMITA PURKAYASTHA)
MEMBER (T)

—Sd—

(DR. DEEPTI MUKESH)
MEMBER (J)

Swati Gupta
(LRA)